

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present

Justice Muhammad Ali Mazhar
Justice Aqeel Ahmed Abbasi
Justice Muhammad Shafi Siddiqui

CIVIL APPEAL NO.88-K & 89-K OF 2023

(Against the Judgment dated 11.02.2021 passed by
the Sindh Service Tribunal at Karachi in Appeal
No.1095/2018)

Muhammad Saleem Shaikh	(In CA.88-K/2023)
Syed Nadeem Shah	(In CA.89-K/2023)
	...Appellant(s)

Versus

Province of Sindh through Chief Secretary, Government of Sindh, Sindh Secretariat, Karachi and others	(In both Civil Appeals)
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Muhammad Saleem Shaikh and others	(In CA.89-K/2023) ..Respondent(s)
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For the Appellants	Malik Naeem Iqbal, ASC a/w Appellant (In CA.88-K/23) Mrs. Abida Parveen Channar, AOR
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Mr. M.Aqil Awan, Sr. ASC a/w
Applicant (In CA.89-K/23)

For Govt. of Sindh	Ch. Rafiq, Addl.A.G.Sindh Mr. Zulfiqar Ali, Focal Person (Agriculture Department)
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For Respondent No.6 (in CA.88-K/23)	Mr. M.Aqil Awan, Sr. ASC
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For Respondent No.5 & 6 (in both Civil Appeals)	Mr. Ibadul Husnain, ASC
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Date of Hearing	17.12.2025
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Judgment

Muhammad Ali Mazhar, J: These Civil Appeals with
leave of this Court are directed against the Judgment
dated 11.02.2021 passed by the learned Sindh Service

Tribunal (**SST**) at Karachi in Service Appeal No.1095/2018.

2. According to the narrative of the appellant in CA.88-K/2023, he lodged his grievance in the SST that his seniority ought to have been counted for promotion, including the period he served in the same department on contract basis and also the service rendered by him in WAPDA as one of his colleagues, Syed Nadeem Shah, (respondent No.06 and the appellant CA.89-K/2023) was accommodated by the department and counted his length of service on contract basis for promotion. Though the appellant moved representation to the competent authority for the same treatment and consideration of promotion on regular basis like Syed Nadeem Shah, his request was not responded within the statutory period of 90 days, hence he approached the SST but his appeal was dismissed by means of the impugned judgment.

3. The leave to appeal in CPLA 515-K/2021, now CA.88-K/2023, was granted vide order dated 16.08.2023 to consider whether the term 'government service' includes the service on contractual basis in terms of paragraph (ii) of the Notification dated 27.02.1984 issued pursuant to proviso of Rule 8 of the Sindh Civil Servants (Appointment, Promotion and Transfer) Rules, 1974, which provided that "(ii) Where initial appointment of a person already in government service takes place, on the recommendations of the Sindh Public Service Commission, in a post in B-18, 19 or 20, the length of service specified in this notification shall be reduced by the periods specified in para (i) of the proviso." Whereas in CPLA 1500/2021 now CA.89-K/2023, the learned counsel articulated that there are certain comments and observations in the impugned judgment which are adverse to the interest of his client. Since the leave was

granted in the connected petition, therefore vide same order, the leave to appeal was also granted in this petition.

4. The learned counsel for the appellant in CA.88-K/2023 argued that the contract services rendered by the appellant in Agriculture Department, Government of Sindh as well as regular service in Federal Government under WAPDA fall within the ambit of government service as contained in the notification dated 27th February, 1984 issued by the Regulation Wing of Services & General Administration Department, Government of Sindh. According to him, this policy letter provides for counting past service towards length of service for the purposes of promotion to next grade or post and contract service rendered in a government department and regular service under Federal Government. It was further contended that the learned Sindh Service Tribunal decided the appeal without appreciating the facts in its true perspective as the appellant had prayed for awarding length of his service for not claiming seniority over or above his batchmates inducted through Sindh Public Service Commission (**SPSC**) for the post of Deputy Director BS-18 and if the service of Syed Nadeem Shah could be counted together with his contractual services for the purpose of promotion to BS-19, then why not could the same treatment be extended to the appellant?

5. The learned counsel for the appellant in CA.89-K/2023 and for respondent No. 6 in Civil Appeal No.88/2023 argued that the impugned judgment is violative of Section 4 of Sindh Service Tribunal Act, 1973. It was further contended that the jurisdiction of the Tribunal can only be invoked by an aggrieved civil servant against final order whether original or appellate. He further argued that the learned Tribunal failed to

appreciate the prayer clauses wherein no impugned order is mentioned. In support of this contention, he referred to the case of I.A. Sharwani and others Vs Government of Pakistan through Secretary, Finance Division, Islamabad and others (1991 SCMR 1041), wherein it was held that Service Tribunal has jurisdiction against a final order, whether original or appellate, made by a departmental authority in respect of any terms and conditions of service. He further contended that the period of contract appointment, if followed by regular service in the same grade and department, can be counted towards period of qualifying length of service for promotion to the higher grade like period spent on ad-hoc appointment and in this regard the SST failed to appreciate O.M dated 20.03.1988 published at SL. No. 201-A at Page 337 of ESTA Code 2009 Edition, which authorizes to count period spent on adhoc appointment for next promotion. He further contended that the Contract Appointment is regulated by Sl.No. 89 at Page 177 of ESTA Code 2009 Edition with certain terms and conditions on appointment including the applicability of government leave rules, medical facilities, conduct and travelling allowance like fellow civil servants. If the officiating service followed by confirmation can be counted for pension or gratuity under the West Pakistan Civil Service Pension Rules enforced on 14.10.1955, then why the contract service cannot be counted towards qualifying length of service for promotion?

6. The learned counsel for the respondent (Muhammad Idrees Khoso) fully supported the impugned judgment of SST and added that the period rendered on contract basis cannot be counted in the regular service for promotion or seniority. He also opposed the counting of

contractual period of service of Syed Nadeem Shah for promotion.

7. The learned Additional Advocate General Sindh argued that the learned SST, while considering the contract services rendered by Syed Nadeem Shah and Mr. Muhammad Saleem Shaikh for counting in the qualifying length of service, rightly held that services on ad-hoc basis comes within the definition of Civil Servant while the service on contract basis cannot be counted with regular service for the purpose of promotion. It was further contended that the contract employment is excluded from the definition of Civil Servant under the Civil Servant Act 1973. He also argued that even regular service in corporations or autonomous bodies are different from civil service, whereas the contract service was completely ousted from the purview of term civil servant. Moreover, the Regulation Wing of Services General Administration & Coordination Department (**SGA&CD**) in consultation with Law Department had clarified that the period served outside this Province viz. in WAPDA, albeit countable towards pay protection and pension, yet this period is not countable towards promotion against the post in Government of Sindh.

8. Heard the arguments. As a matter of fact, the leave was granted to advert to whether the appointment on the recommendations of SPSC to a post in B-18, 19 or 20 on contract basis in government service shall be countable in the length of service for promotion in terms of notification dated 27.02.1984 issued Regulation Wing of SGA&CD, Government of Sindh, pursuant to the provisions contained in the proviso of Rule 8 of Sindh Civil Servants (Appointment, Promotion and Transfer) Rules, 1974. The fundamental and foremost arguments for and against were as to why the services rendered on contractual basis should not be counted for the

purposes of promotion when such premium is accorded in the case of appointment and holding post on adhoc or acting charge basis. The memo of Service Appeal presented in the SST demonstrates that the appellant (Saleem Shaikh) was aggrieved by the Final Seniority List wherein his name was not included without realizing that his case was at par with Syed Nadeem Shah, therefore, he submitted his departmental appeal for challenging the final seniority list but it was not responded within the statutory period, hence he approached the SST and sought the directions against the department to count his previous government service for promotion in (BS-19) as regular service and notify the promotion with effect from 12.02.2015 after including his name in the Final Seniority list of Directors/Additional Directors (BS-19) and also correct the date of first entry into service from 23.04.2005.

9. If we embark on the literal purpose of ad-hoc employment and its continuity/tenure, it enlightens an arrangement of short-term period or a stop-gap arrangement, occasionally pending recruitment to fill a substantive post through the prescribed method and sometimes, the candidate might be eligible for promotion according to his service record and experience but short of prescribed length of service. According to Section 2, definition clause (a) of Civil Servants Act, 1973, "ad-hoc appointment" means appointment of a duly qualified person made otherwise than in accordance with the prescribed method of recruitment, pending recruitment in accordance with such method". Even under the Sindh Civil Servants Act, 1973, Section 2, (a) same meaning has been assigned to the "ad-hoc appointment".

10. Insofar as the appointment of acting charge basis, an explicit provision is contained under Rule 8-B of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973 that where the appointing authority considers it to be in the public interest to fill a post reserved under the rules for departmental promotion and the most senior civil servant belonging to the cadre or service concerned who is otherwise eligible for promotion does not possess the specified length of service, the authority may appoint him to that post on acting charge basis. In the case of a post in basic pay scales 17 to 22 and equivalent, reserved under the rules to be filled by initial appointment and where the appointing authority is satisfied that no suitable officer drawing pay in basic pay scale in which the post exists is available in that category to fill the post and it is expedient to fill the post, it may appoint to that post on acting charge basis the most senior officer otherwise eligible for promotion in the organization, cadre or service, as the case may be, in excess of the promotion quota. It is further provided that the appointment on acting charge basis shall be made on the recommendations of the Departmental Promotion Committee or the Central Selection Board but the acting charge appointment shall not amount to appointment by promotion on regular basis for any purpose including seniority and it shall not confer any vested right for regular promotion to the post held on acting charge basis. Whereas in the Rule 8-A of the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules, 1974, almost similar provision is embedded for appointment on acting charge basis with the rider that acting charge appointment shall not amount to appointment by promotion on regular basis for any purpose including seniority and it shall not confer any vested right for regular promotion to the post or grade

held on acting charge basis. Moreover, the service rendered on acting charge basis in the basic Scale applicable to the post shall also not count for purposes of drawl of increments in the basic scale but it shall, however, count towards increments in the basic scale held immediately before appointment on acting charge basis.

11. Whereas the contractual employment is actuated for a fixed timeframe with certain terms and conditions to regulate such contractual arrangements on the basis of consolidated remuneration, this arrangement may be entered into to accomplish specific, envisioned or time-bound scope of work including the different projects with commencing and ending dates in a formal contract which serves as a blueprint for the employment rather than general service rules or civil servant laws. In this regard, SI.89, of Civil Establishment Code, 2008 (ESTACODE) is germane to the contractual employment whereby it was decided to institutionalize the method by drawing up a standard letter of contract containing the terms and conditions of contract appointment and a standardized form of contract was prepared with the consultation of the Ministry of Finance and Law Division. By and large, no vested right accrues for regularization of contractual services unless it is permitted under the government scheme/policy or the statute conferring a right of regularization.

12. Since the appellant before the SST also challenged the final seniority list on the anvil that his name was wrongly ignored which should have been placed at the right place of seniority while considering his whole period of service including the period in which he served by dint of contractual arrangement, therefore at this juncture, it is also imperative for us to have a glance at Section 8 of the Civil Servants Act, 1973, which

provides unequivocally that for proper administration of a service, cadre, or post, the appointing authority shall cause a seniority list of the members for the time being of such service, cadre or post to be prepared, but nothing shall be construed to confer any vested right to a particular seniority in such service, cadre or post as the case may be; seniority on initial appointment to a service, cadre or post shall be determined as may be prescribed and what is most important is that the seniority in a post, service or cadre to which a civil servant is promoted to shall take effect from the date of regular appointment to that post. In tandem, Section 8 of the Sindh Civil Servants Act, 1973 also accentuates almost similar provision for determining the seniority and moot point is that the seniority in a post, service or cadre to which a civil servant is promoted shall take effect from the date of regular appointment of such civil servant to that post, service or cadre.

13. For all intents and purposes, the issue cropped up in consequence of a letter dated 19.01.2018 assimilating the opinion of SGA&CD, Government of Sindh that Syed Nadeem Shah was appointed on contract basis as Deputy Director (BPS-18) in the year 2005 in accordance with the prescribed procedure, therefore, his length of service in BS-18 merits to be counted from 25.05.2005, the date on which he was appointed on contract basis. The appellant before SST pleaded discrimination that his period of contractual employment was not considered for promotion and seniority but the same benefit was accorded to Syed Nadeem Shah without any lawful justification. One more letter issued by Section Officer of Agriculture, Supply & Prices Department on 26.09.2019, denotes that advice was rendered by Regulation Wing for inclusion of contractual service for the purposes of

promotion was re-examined taking into account the judgment of Sindh High Court in CP No. D-6611 of 2018 and discoursed that no appointment made on contract/ad-hoc basis shall be regularised retrospectively. It was further articulated that the service of Syed Nadeem Shah on contract basis was not countable towards the length of service for promotion, thus the matter was referred to the Services Wing of SGA&CD to decide. In our view, if someone has done something unjust or unlawful, is no justification to commit the same mistake or act in a similar way time and again. Since the error was sought to have rectified at departmental level, therefore the plea of discrimination for indifferent treatment was also subsided.

14. At this moment in time, the definition of "Civil Servant" provided in Clause (b) of Section 2 of the Civil Servants Act, 1973 is quite significant which means a person who is a member of an All-Pakistan Service or of a civil service of the Federation, or who holds a civil post in connection with the affairs of the Federation, including any such post connected with defence, but does include (i) a person who is on deputation to the Federation from any Province or other authority; (ii) a person who is employed on contract, or on work-charged basis or who is paid from contingencies; (Emphasis applied) or (iii) a person who is "worker" or "workman" as defined in the Factories Act, 1934 or the Workman's Compensation Act, 1923. Similar definition of "Civil Servant" is encapsulated in Clause (b) of Section 2 of the Sindh Civil Servants Act, 1973 with the exclusion of (i) a person who is on deputation to the Province from the Federation or any other Province or authority; or (ii) a person who is employed on contract, or on work charged basis, or who is paid from

contingencies; (Emphasis applied) or (iii) a person who is “worker” or “workman” as defined in the Factories Act, 1934 or the Workmen’s Compensation Act, 1923.

15. The bone of contention is whether the expression 'government service' includes the period served on contractual arrangement therefore it ought to have been counted for the promotion in terms of the Notification dated 27.02.1984 issued pursuant to proviso of Rule 8 of the Sindh Civil Servants (Appointment, Promotion and Transfer) Rules, 1974. In order to thrash out the controversy, we also surveyed Section 9 of the Civil Servants Act, 1973, which provides that a civil servant possessing such minimum qualifications as may be prescribed shall be eligible for promotion to a higher post for the time being reserved under the rules for departmental promotion in the service or cadre to which he belongs. Whereas under the Civil Servants' (Appointment, Promotion and Transfer) Rules, 1973, Rule 8-A congruently provides that no promotion on regular basis shall be made to posts in basic pay scales 18 to 21 and equivalent unless the officer concerned has completed such minimum length of service as may be specified from time to time. In the swing of things, the Sindh Civil Servants Act, 1973, promotion is accorded or dealt with under Section 9 which is also made subject to possessing such minimum qualification by a civil servant as may be prescribed for promotion to a higher post for the time being reserved under the rules for departmental promotion in the service or cadre to which he belongs. While in the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules, 1974, Rule 8 also sets down with clarity that persons who possess such qualifications and fulfil the conditions laid down for the purpose of promotion or transfer to a post shall be considered by the Departmental Promotion

Committee or the Provincial Selection Board, as the case may be; provided that no promotion on regular basis shall be made in Basic Scale 18 to Basic Scale 21 unless the officer concerned has completed such minimum length of service as may be notified by Government.

16. If the contention of the learned counsel is taken for granted that the contractual service should be counted as regular service for promotion or the period of contractual service comes within the ambit of "government service" as per aforesaid notification relied upon in the leave granting, it will not only amount to an erroneous interpretation but also contrary to the parent statutes. It will also amount to award the status of civil servant to the contractual employees from inception, making the ouster clause of definition of civil servants both in federal and provincial Civil Servant Acts redundant and creating an egregious situation with serious ramifications. The true meaning or import of the expression "government service" cannot be interpreted beyond the scope of Civil Servant Acts. On level pegging, Rule 10 of Sindh Civil Servants (Probation, Confirmation and Seniority) Rules 1975, also ordains forthrightly that subject to the provision of rule 11, the seniority of a civil servant shall be reckoned from the date of his regular appointment and no appointment made on ad-hoc basis shall be regularized retrospectively. When this provision unambiguously debars even the regularization of adhoc service retroactively, then how the contractual employees appointed against the specific terms and conditions, governing their distinct employment status which is neither protected nor regulated by the parent statute could claim the inclusion or merger of contractual services into regular period of service for promotion? If

this plea is accepted, it amounts to do an act indirectly which is barred directly.

17. At this point, we are reminiscent of a renowned Latin maxim "*Quando aliquid prohibetur ex directo, prohibetur et per obliquum.*" or "*Quando aliquid prohibetur ex directo, prohibetur et omne per quod devenitur ad illud*" deciphered in its plain nuance that "What is prohibited directly is also prohibited indirectly." This channel of communication deduces that the law cannot be vanquished by shortcuts, or tacit stratagems calculated to accomplish what is otherwise prohibited or proscribed. The purpose of this doctrine is to make sure and examine the legality or illegality of any action not only by form but by substance also and its aftermath. Of course, if an act is outlawed by law, it cannot be performed by manoeuvring for the reason that all such indirect defilements would render the legal prohibitions useless and of no value. The underlying principle of the aforesaid maxim is at the bottom of legislative intent, therefore, sanctioning the indirect circumvention or manipulation gravely dismays and impairs the very objective of legislation. Even the State cannot achieve such outcomes through indirect methods by means of executive instructions, administrative circulars, or delegated legislation if not protected and permitted in the parent law. The administrative and regulatory powers are vested in the statutes or the rules and regulations made thereunder and if any particular action is restricted that cannot be achieved by dint of ancillary or incidental powers.

18. The learned counsel for the appellant in CA.89-K/23 argued that the SST could take the cognizance only against the final or appellate departmental orders but no such order was challenged before SST. He relied on the dictum laid down in the case of I.A. Sharwani and

others Vs Government Of Pakistan through Secretary, Finance Division, Islamabad and others (1991 SCMR 1041), wherein this Court while relying upon Section 4 of the Service Tribunals Act, 1973 held that right of appeal to a civil servant is available against final order, whether original or appellate, made by a departmental authority in respect of any of his terms and conditions of the service but it was further held that a precondition for filing of a service appeal by an aggrieved civil servant before approaching the Service Tribunal is that he should file an appeal, review or representation as may be provided before the departmental authority and should wait for the expiry of 90 days from the date on which such appeal, review or representation was preferred, if the same is not decided before the expiry of the above period.

19. If we look into the substratum of service appeal presented before the SST, the appellant challenged the final seniority list through departmental representation/appeal and since it was not considered or responded within the statutory period, he approached the SST. What is actually pertinent to grasp is the cause of action accrued to the appellant for entreating the jurisdiction of learned SST. A cause of action is a set of factual and legal rudiments for invoking legal remedy as a bundle of facts required to be proved for obtaining judgment. A suitor is required to show that not only a right has been infringed in a manner to entitle him to a relief, but there was no other remedy to challenge the seniority list on whatever grounds except submitting the departmental representation/appeal and since it was not decided, no other option was available but to file appeal in the SST and while taking the cognizance, the learned SST discussed the ramifications and repercussions of the

whole controversy as a first fact finding forum including the crucial question raised for counting the contractual service into regular service for promotion as well as the plea of discrimination raised by the appellant vis-à-vis the treatment met out to Syed Nadeem Shah which does not amount to any adverse remarks or denunciation against him but explicated the true position emerging from law.

20. After due consideration, the learned SST rightly exercised its jurisdiction and held the contract service is excluded from the definition of civil servant and the prayer for counting the contract service together with regular service for the purpose of qualifying length of service for promotion was rejected. However, while drawing analogy from policy letter issued by Secretary, Finance Department, Government of Sindh to all the administrative Secretaries during 1986, the learned SST held that the regular service in Federal Government can be tagged with the regular service in the Province only for the purpose of monetary benefits like move over, pension and gratuity but there should be no break in service and the service in Federal Government has been counted towards fixation of pay in the new service of Provincial Government Department. Though there has been a lot of water under the bridge and lot of time has passed in the protracted litigation and we were informed during course of hearing that by efflux of time, both the appellants before us have already been promoted in BPS-20, however we have discussed in detail the legal provisions and implication regarding the status of ad-hoc, acting charge and contractual employment in support of the relevant provisions of statutes and enabling rules.

21. The learned counsel for the appellant (Syed Nadeem Shah) cited the dictum laid down in the case of Federation of Pakistan versus Raiz Khan (1993 SCMR 609), which in our considered view does not germane to account for the period of service rendered on contractual basis at the time of regularization of service but it was directly focused on the period of ad-hoc service followed by regular service in the same scale for counting towards length of service prescribed for promotion or move over in the next higher scale. It was further held that seniority in a post, service or cadre to which a civil servant is promoted would take effect from the date of regular appointment to that post and for purpose of seniority in a particular grade, regular appointment is the determining factor.

22. Since we did not find any irregularity, impropriety, or perversity in the impugned judgment passed by the learned SST, therefore we dismissed both the appeals vide our short order dated 17.12.2025. Above are the reasons.

Judge

Judge

Karachi

17.12.2025

Khalid

Approved for reporting.

Judge